

"current specified cost", in relation to frames supplied under Part IV of the National Health Service Act, 1946 or Part IV of the National Health Service (Scotland) Act, 1947, means the sum specified in the Statement of Fees and Charges as the sum payable for frames of that description by the person to whom they are supplied (including, in the case of the Statement in force at the commencement of this Act, any sum so specified as payable by the Council), and in relation to frames supplied under Part II of those Acts respectively means a sum equal to the sum specified as aforesaid or, in the case of frames of a description for which no sum is so specified, such sum as may be determined by or in accordance with directions given by the Minister of Health or the Secretary of State, as the case may be;

and for the purposes of this provision "the Statement of Fees and Charges" means the Statement of Fees and Charges prepared under Regulation 3 of the National Health Service (Supplementary Ophthalmic Services) Regulations, 1948 or under Regulation 3 of the National Health Service (Supplementary Ophthalmic Services) (Scotland) Regulations, 1948, as the case may be, or any corresponding regulation for the time being in force.

CHAPTER 32

An Act to amend the British North America Act, 1867.
[31st May 1951.]

WHEREAS the Senate and House of Commons of Canada in Parliament assembled have submitted an address to His Majesty praying that His Majesty may graciously be pleased to cause a measure to be laid before the Parliament of the United Kingdom for the enactment of the provisions hereinafter set forth:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The British North America Act, 1867, is amended by adding thereto immediately after section ninety-four thereof the following heading and section:—

"OLD AGE PENSIONS

94A. It is hereby declared that the Parliament of Canada may from time to time make laws in relation to old age pensions in Canada, but no law made by the Parliament of Canada in relation to old age pensions shall affect the operation of any law present or future of a Provincial Legislature in relation to old age pensions."

Amendment
as to legislation
respecting old
age pensions.
30 & 31 Vict.
c. 3.

Short title
and citation.

2. This Act may be cited as the British North America Act, 1951, and the British North America Acts, 1867 to 1949, and this Act may be cited together as the British North America Acts, 1867 to 1951.

CHAPTER 33

An Act to repeal the Witchcraft Act, 1735, and to make, in substitution for certain provisions of section four of the Vagrancy Act, 1824, express provision for the punishment of persons who fraudulently purport to act as spiritualistic mediums or to exercise powers of telepathy, clairvoyance or other similar powers.
[22nd June 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Punishment
of fraudulent
mediums, &c.

1.—(1) Subject to the provisions of this section, any person who—

(a) with intent to deceive purports to act as a spiritualistic medium or to exercise any powers of telepathy, clairvoyance or other similar powers, or

(b) in purporting to act as a spiritualistic medium or to exercise such powers as aforesaid, uses any fraudulent device,

shall be guilty of an offence.

(2) A person shall not be convicted of an offence under the foregoing subsection unless it is proved that he acted for reward; and for the purposes of this section a person shall be deemed to act for reward if any money is paid, or other valuable thing given, in respect of what he does, whether to him or to any other person.

(3) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and such imprisonment, or on conviction on indictment to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding two years or to both such fine and such imprisonment.